

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 2, 2026
8:30 a.m./1:30 p.m.

2. JOSHUA KHOSHSEFAT V. HEIDI KHOSHEFAT

24FL0682

On July 30, 2025, Respondent filed a Request for Order (RFO) seeking a variety of orders as stated therein. She filed a Memorandum of Points and Authorities concurrently therewith.

A Declaration Re Diligence was filed on October 20th evidencing attempted service of process on Jane Yeun Sook Khoshsefat. Another was filed on October 23rd.

There is no Proof of Service for the RFO, however, on October 24th, Petitioner filed and served a Responsive Declaration to Motion for Joinder and a Responsive Declaration to Request for Order thereby waiving any potential defect in service.

Respondent asks that the court grant joinder of Jane Yeun Sook Khoshsefat. She asks for a finding that Petitioner breached his fiduciary duty on several occasions and that the court set aside the transfer of title to the community property Lamborghini. She requests title to the Lamborghini be put in the names of both parties. Finally, she requests attorney's fees and costs pursuant to Family Code § 1101 and § 271.

Petitioner opposes the request for joinder and offers several alternatives.

Given that the Lamborghini was purchased during the marriage and title was held in the family trust prior to transfer, title to the Lamborghini is ordered to be placed in the names of both parties pending trial on the issue of property division. The court is reserving jurisdiction to make a finding that Petitioner breached his fiduciary duty and award sanctions pursuant to Family Code § 1101 and/or Family Code § 271.

Regarding the joinder, "[t]he court may order that a person be joined as a party to the proceeding if the court finds that it would be appropriate to determine the particular issue in the proceeding and that the person to be joined as a party is either indispensable for the court to make an order about that issue or is necessary to the enforcement of any judgment rendered on that issue." Cal. Rule Ct. 5.24(e)(2).

After reviewing the pleadings, it is unclear to the court whether Mrs. Khoshsefat is an indispensable party. Transferring title to the Lamborghini back to the parties resolves the need for joinder in that regard. However, there is still the outstanding issue of deposits Petitioner made to his mother. It is unclear to the court if Respondent has been able to obtain all necessary records via subpoena or if Petitioner and his mother have objected to any such subpoenas. It is further unclear if the community estate is sufficient to cover any

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improper transfers that were made or if joinder of Mrs. Khoshsefat is necessary to enforce any such judgment. The parties are ordered to appear on this issue.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: TITLE TO THE LAMBORGHINI IS ORDERED TO BE PLACED IN THE NAMES OF BOTH PARTIES PENDING TRIAL ON THE ISSUE OF PROPERTY DIVISION. THE COURT IS RESERVING JURISDICTION TO MAKE A FINDING THAT PETITIONER BREACHED HIS FIDUCIARY DUTY AND AWARD SANCTIONS PURSUANT TO FAMILY CODE § 1101 AND/OR FAMILY CODE § 271.

THE PARTIES ARE ORDERED TO APPEAR ON THE ISSUE OF JOINDER.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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3. HOPE KINSMAN V. JEREMY KINSMAN

25FL0256

On April 9, 2026, Respondent filed a Request for Order (RFO) seeking attorney's fees and costs. It does not appear that this RFO was served, however on June 9, 2026 he filed an amended RFO seeking spousal support, attorney's fees and "fiduciary sanctions." He attached a previously filed Income and Expense Declaration dated March 2nd, but he did not file an updated Income and Expense Declaration. The amended RFO was served on June 9th along with an FL-150, though it is unclear if the FL-150 that was served was a blank one or an updated one. Additionally, the Notice of Tentative Ruling was not served.

Petitioner filed and served her Responsive Declaration to Request for Order and her Income and Expense Declaration on June 17th.

Respondent filed a reply declaration and his Income and Expense Declaration on June 23rd.

"For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. "'Current' means the form has been completed within the past three months providing no facts have changed." Cal. Rule Ct. 5.260(3). The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

In addition to the court's need for an Income and Expense Declaration to make support orders, it is also needed for the court to rule on a request for attorney's fees as the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

This matter is dropped from calendar due to Respondent's failure to timely file the requisite Income and Expense Declaration and due to his failure to serve the required Notice of Tentative ruling.

TENTATIVE RULING #3: THIS MATTER IS DROPPED FROM CALENDAR DUE TO RESPONDENT'S FAILURE TO TIMELY FILE THE REQUISITE INCOME AND EXPENSE DECLARATION AND DUE TO HIS FAILURE TO SERVE THE REQUIRED NOTICE OF TENTATIVE RULING.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR